

EXECUTIVE SUMMARY OF SUBMISSION:

PROTECTION OF CHILDREN WITH DISABILITIES FROM SEXUAL ABUSE

In the course of this submission we will set out scenarios experienced in Orange Farm that illustrate that sexual abuse of CWD is underreported and increasingly difficult to effectively report. Reasons for this include that the capacity of CWD to report sexual abuse, as well as to correctly recall and relay details of such abuse as complainants and witnesses, is not sufficiently recognised and limited to no accommodation of CWD is made by State institutions. Further to this, the few cases that CWD manage to report very seldom, and in fact in our experience in Orange Farm never, lead to a conviction. As a result of this underreporting there is a lack of precedent development on sexual abuse cases of CWD and the issues specific to complainants and witnesses with disabilities and sentencing of perpetrators against CWD. Coupled with this, CWD who manage to negotiate the highly inaccessible system of reporting and prosecuting abuse remain intimidated by family members of the accused, together with the fear of the accused being released on bail back into their community. As a whole, police, health, social development and justice services are not disability sensitive and a lack of proactivity and urgency in carrying out their legislated role of protecting these vulnerable children is endemic to Orange Farm.

ACCESS TO EDUCATION FOR CHILDREN WITH DISABILITIES

Studies indicate that half of the school-going aged CWD in Orange Farm are not enrolled in school. Our experience confirms this. Our specific findings are that local schools are not inclusive; cost of sending a CWD to school is far greater than that of local Orange Farm-based schools particularly due to schools suitable for CWD being far away. As such, transport becomes a financial and logistical barrier. From the point of a CWD being of school-going age, the process of finding a school placement is difficult to negotiate and impractical due to a lack of coordination between Government Departments. On a basic level, for the parents who do manage to advocate for their CWD to be placed in an appropriate school, negative attitudes based on a lack of training on Disability Rights creates a further barrier. A final issue is that once placed in schools, abuse or poor treatment of CWD has been experienced. We illustrate the above using actual case studies.